1399 Park Avenue Condominium

RULES AND REGULATIONS

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ARTICLE 1

STATEMENT OF PURPOSE

1.1 1399 Park Avenue Condominium has been established pursuant to the Master Deed and By-Laws. It is the responsibility of the Condominium to promulgate and enforce rules and regulations for the maintenance and operation of the Property.

1.2 The Condominium reserves the rights to alter, amend, modify, repeal or revoke these Rules and Regulations, and/or any consent or approval given hereunder at any time by resolution of the Condominium or of the "Board". These Rules and Regulations are supplementary to, and not in lieu of, provisions governing the Association which are set for in the Condominium documents, including the Master Deed and By-Laws, or applicable local, state and Federal laws. The purpose of the Rules and Regulations is to assure the health, comfort, convenience, safety, privacy, peace of mind, and general welfare of all Residents and the maintenance of the structural integrity and aesthetic appearance of the Property. Since each Unit Owner is a part owner of the Common Elements and, as such, pays a proportionate share of the expenses of repair and maintenance, it is incumbent on each Unit Owner, and his/her family members to have a sense of pride of ownership and to refrain from acts or omissions that may cause damage or impair the value of the Property. Adherence to the Rules and Regulations will assure, to the greatest extent practical, that the amenities of living in 1399 Park Avenue Condominium will remain available to all and will enable the Residents to live together in a harmonious community spirit.

The following Rules and Regulations are part of the official documents of the Condominium and are binding upon all Unit Owners and Residents as well as upon their guests, employees, agents, contractors or other Visitors. Residents are responsible for the actions of their guests, employees, agents, contractors or other Visitors, including movers and delivery personnel (collectively "Visitors").

ARTICLE 2

DEFINITIONS

2.1 Unless the context clearly indicates otherwise, all definitions set forth in the Master Deed and By-Laws for The Condominium are incorporated herein by reference.

2.2 "Property Manager" or "Manager" shall mean the person or persons employed by the Condominium to supervise the employees of the Condominium, maintain the buildings, grounds, facilities and services, apply the Rules and Regulations, and implement the policies and rulings of the Board of Managers.

2.3 Should the property manager or the Board determine that any Visitor poses a risk to the property of the Association, a Unit Owner, or a Resident, or is otherwise in violation of the Rules & Regulations, the property manager or the Board may require that the visitor leave the property immediately.

2.4 "Management Office" shall mean the Office of the Property Manager, currently located at 1399 Park Avenue Unit 19B.

2.5 As used herein, “Unit Owner(s)” shall mean the Owner(s), whether in residence or not, of any unit.

2.6 "Resident" shall mean a person who occupies a unit as his/her residence, whether as a Unit Owner or tenant of a Unit Owner, and the family members of a Unit Owner or tenant, or another lawful occupant of the unit.

ARTICLE 3

GENERAL PROVISIONS

3.1 Any person within the building or on the grounds of the Condominium, including Unit Owner(s) and their family members, or their tenants, shall present suitable identification to authorized building personnel upon request.

3.2 All Unit Owners, Visitors, their family members and pets, guests, trades persons, contractors, agents, employees or other Visitors granted entrance onto the property and into the buildings of 1399 Park Avenue Condominium shall be expected to conduct themselves in a manner which does not cause any other person on the premises any harm or avoidable discomfort and which respects the rights of each to a peaceful environment. They shall also be expected not to do anything that may cause harm or endanger the property of other Unit Owners, Residents, or the Condominium.

3.3 **Responsibility of Unit Owners and Residents**

a) A Unit Owner is primarily and ultimately responsible for his/her own conduct and for the conduct and actions of all Residents in, or Visitors to, his/her units, as well as for the actions of the pets

residing in the unit -- whether in the unit or any Association common areas. Unit Owners are responsible for informing tenants, Residents and Visitors of these Rules and Regulations.

b) Unit Owners, Residents, their pets or Visitors shall not damage or vandalize common areas. Unit Owners are responsible for the actions of their tenants, family members, others residing in the unit, guests, employees, other Visitors and pets, and will be held accountable for any damage caused to the property by the aforementioned. Additionally, damage caused to any unit or Association property by the personal property of a Resident or Visitor shall be the responsibility of the Unit Owner. A Unit Owner may be held responsible for damages caused by their personal property during a storm or other natural events.

c) Unit Owners will be held financially responsible for any and all costs, including but not limited to permits, attorney fees, court costs, etc. for the immediate repair, refurbishment or replacement of any of the Condominium or 1399 Park Avenue Condominium property damaged as a result of the actions of the Resident, tenant, family members, pets, guest, or other Visitors, in addition to any fines or penalties that may be levied hereunder. A Unit Owner may also be assessed the costs and legal fees incurred by the Condominium in taking corrective, protective, or preventive action as a result of his/her conduct or that of his/her Residents, or Visitors, or their pets, in violation of these Rules and Regulations.

3.4 No flammable, combustible, hazardous or explosive fluid, material, chemical or substance, shall be brought into or kept on the premises in any Unit, roof terrace, balcony, Common Element or Limited Common Element, except items suitable for normal household use.

a) Barbeque grills are limited to gas only.

b) Charcoal and propane grills, propane heaters and propane or wood fire pits are **prohibited** on or around the premises.

3.5 No solicitations or mass distributions of written material will be permitted by any person, group, association, or business anywhere in 1399 Park Avenue Condominium property for any cause whatsoever without prior written authorization by the Board of Managers, nor shall any written communication or any other material be placed on, under, or at the door of any unit or posted or placed at any location by any person, other than material distributed by the Condominium.

3.6 Nothing shall be permitted to be affixed or hung from the units or common elements or displayed on the inside or outside of the building. No sign, awning, canopy, shutter, enclosure or radio or satellite antenna shall be affixed to or placed upon the interior or exterior walls, doors, roofs, roof terraces, balconies or any other part of the building or exposed on any window, without the prior written consent of the Board of Managers. (Certain temporary seasonal decorations on the doors or inside windows are permitted as outlined in Article 4.)

3.7 The personal property of any Unit Owner or Resident personal property shall be stored inside of a unit. No storage is allowed in the terraces, balconies or any common area, including the hallways, stairwells, Community Room, Children's Playroom or Common Outdoor Terrace.

3.8 No person, other than authorized personnel, shall construct or repair anything in any part of the Common Elements. The Condominium is responsible for such activities and requests for any remedial work to the common elements should be submitted to the Manager. Unit Owners or Residents shall promptly report to the Condominium upon discovery any defect or need for repairs for which the Condominium is responsible.

3.9 Unit Owners or Residents shall not engage Employees of the Condominium for any service during their normal working hours except as authorized by the Manager.

3.10 Unit Owners, Residents or their Visitors, shall not direct, supervise or in any manner attempt to assert any control over employees of the Condominium or its contractors in the performance of their duties to the Condominium.

3.11 Complaints or requests regarding services in the Condominium shall be made to the Manager in writing. Complaints regarding the Manager should be directed to the Board of Managers in writing.

3.12 All persons passing through public areas, including the lobbies, elevators, hallways and common rooms, must be in proper attire, including shoes and shirt.

3.13 Playing, running, rollerblading/skating, cycling and similar activities are not permitted in any common area, interior or exterior, including the lobbies, hallways, common rooms, elevators, stairwells, mail rooms, parking areas and courtyard, except in rooms or outside areas so designated. Any child on Condominium property must be reasonably supervised by a parent or guardian.

3.14 No one other than building authorized personnel are allowed on any other area of the roof. Access to roof areas shall be restricted to private roof terraces and the common roof terrace within guidelines that will be adopted from time to time by the Board of Managers.

3.15 1399 Park Avenue Condominium is a smoke-free environment. Smoking or carrying lighted cigarettes, electronic cigarettes, vapes, cigars or pipes is prohibited in all interior common areas including, but not limited to the lobbies, hallways, elevators, common outdoor deck, stairwells, common rooms, mail rooms, compactor rooms, storage rooms, vestibules, individual units and parking areas.

3.16 Duplicate keys to each unit must be given to the Manager for placement in a secure location. Failure to do so will, in the event of an emergency, cause the Unit Owner to bear the cost of any forcible entry required and required repairs and/or replacement of the unit door and lock. These keys are for building use in the event of an emergency. Unit Owners not living at 1399 Park Avenue Condominium, who have retained the services of a Real Estate Agent to lease their unit, must provide a set of keys to the agent for the purpose of entering the unit and must have a written authorization for the agent to enter on file with Management. The agent is required to sign in at the front desk before entering the unit.

3:17 Any Unit Owner, Resident, or Visitor who is locked out from his/her unit and requires the assistance of the Condominium's employee to obtain access back into their his/her unit after business hours, will be subject to a $50.00 lock out fee or such other fee as established by the Board from time to time.

3.18 Unit Owners may lease their units for a minimum of twelve months. A copy of the executed lease together with any Rider required by the Board of Managers, including a provision that the lessee agrees to abide by the Rules and Regulations of the Condominium, must be provided to the Manager. Unit Owners shall provide tenants, if any, with a copy of these Rules & Regulations.

ARTICLE 4

THE LOBBIES, HALLWAYS & STAIRWELLS

4.1 There shall be no noisy, unruly, or prolonged assembly or loitering in the lobbies, elevator landings or hallways. The hallways, stairwells, vestibules, parking areas, driveways and sidewalks shall not be used for any purpose other than normal transit.

4.2 No wheeled objects other than baby carriages, wheelchairs, garment racks and wheeled luggage shall be permitted to pass through the lobbies, hallways and other common areas. Roller blades and roller skates may not be worn in the hallways and lobbies and other common areas and bicycles, scooters, skateboards and other riding vehicles should not be ridden in the hallways and lobbies and other common areas. Skates should be removed and bicycles, scooters, etc. shall be dismounted and walked or carried through the common areas.

4.3 Hallways and walls adjacent to units as well as the outer surface of the unit doors shall not be decorated, covered, painted, or furnished in any manner by an individual Unit Owner or Resident, and nothing shall be permitted to be affixed or hung from the walls or doors except for small religious devices that may be affixed within the door recess in accordance with religious beliefs. Temporary seasonal decorations on doors are also permitted. Care should be taken to ensure that damage to the doors does not occur.

a) Unit door decorations for Halloween will be permitted during the month of October, per guidelines established by the property manager.

b) Unit door decorations will be permitted during winter season festivities from Thanksgiving until January 15, per guidelines established by the property manager.

c) All holiday trees should be completely covered and brought down to the compactor room. Stray needles and debris that fall in the common areas when bringing the tree into the unit or upon removal of the tree are the responsibility of the Unit Owner to clean up.

4.4 Nothing shall be permitted to be stored or placed in hallways, stairwells or other common and/or public areas, which must remain unobstructed and unencumbered for emergency egress. This includes but is not limited to doormats, bottled water, packages, umbrellas, shoes, boots, strollers, wheelchairs, bicycles, tricycles, skateboard, scooters, toys, personal articles, etc.

4.5 The apartment and stairwell doors shall be kept closed at all times except for entering and exiting. Venting of cooking or other odors or airing out should be accomplished by opening a window, not the door. Care should be exercised not to create noise when opening and closing doors (i.e. no slamming of doors).

ARTICLE 5

ELEVATORS, SERVICE ENTRANCES AND MOVING / DELIVERY PROCEDURES

5.1 No one is permitted to interfere with the normal operation of the elevators or service entrances in any way. The Manager should be notified immediately of any indication of malfunction.

5.2 Persons with luggage carts, bulky objects or other vehicles must not damage the elevator doors, door frames or the interior of the cabins. Such persons will be responsible for the cost of any repairs to restore the elevator to its original condition. The determination of repairs required will be the responsibility of the Manager.

5.3 Under no circumstances shall luggage carts or other carriers be left in the elevators or hallways. After use, such carts or carriers must be returned to their site of origin.

5.4 No notices, advertising material, or other material shall be affixed or hung in the elevators, other than by authorized personnel, and no act is permitted that may deface or alter in any way the interior surfaces of the cabins. Unit Owners will be responsible for the cost of any repairs to restore elevators to their original condition. The determination of repairs required will be the responsibility of the Manager.

5.5 Contractors and others transporting equipment, materials or debris shall use the elevator designated by the Building Superintendent for that purpose and shall wear proper identification issued by the Condominium.

5.6 Delivery personnel, tradesmen, and construction workers shall sign in at the Front Desk and receive instructions regarding the appropriate service entrance to be used. Deliveries of bulk items shall be made Monday to Saturday, excluding building holidays, from 9:00 a.m. to 5:00 p.m. The Building Management's Office must be notified at **least 48 hours before a delivery**. There will be no charge for the use of the elevator and/or service entrances for deliveries up to 60 minutes. For longer use of the elevators and/or service entrances there may be a charge which will be determined from time to time by the Board of Managers.

5.7 Package and overnight deliveries will be handled in accordance with policies set by the Board of Mangers upon notification to all Unit Owners and Residents.

5.8 Persons moving furnishings and/or materials or equipment in or out of the building shall use the assigned service elevator and/or service entrance and shall not obstruct the hallways or the area in front of the elevators. Residents moving their households in or out of the building must reserve an elevator and/or service entrance at **least 48 hours in advance with the Building Management Office**. A security deposit may be required, the amount of which will be determined from time to time by the Board of Managers. This deposit will be deposited and retained for the purpose of applying to the cost of repairing any damage to the common elements or other units made by the movers or Resident during the moving process. The balance, if any, will be returned to the Resident who made the deposit. There may also be a charge, again to be determined by the Board of Managers, to have an employee of the Building or guard operate the elevator and man the service entrance during the moving process. No moves shall commence prior to 9:00 a.m. No moves will be permitted on Saturdays, Sundays or Holidays under any circumstances. All Moves that take place Monday through Thursday are to be completed by 5:00 p.m. All Friday moves are to be completed by 3:00 p.m. Under special circumstances the Manager may extend this period, at an additional cost to the moving party. Movers are required to provide Masonite boards to protect the floors from door to door as a preventative maintenance. In addition, all movers and contractors are required to sign in with the front desk and will be required to wear a photo id provided to them by the concierge. All moving companies are required to provide a proper Certificate of Insurance (COI). All proper info must be obtained from Management.

5.9 Any damage to the elevators, service entrances or other common areas is the responsibility of the person causing the damage, or in the event of damage caused by a pet, by the owner of the pet. If the damage was caused by someone other than a Unit Owner, the Unit Owner will ultimately be held financially responsible for such repairs and other related costs, including but not limited to permits, attorney fees, court costs and violations that may be assessed.

5.10 All moves must provide management with a refundable check of $1000 for the security deposit, made out to 1399 Park Avenue Condominium, along with a non-refundable check for the $300 move fee made out to 1399 Park Avenue Condominium. All moves will have a staff member onsite for the whole duration of the move.

5.11 **The certificate of insurance needs to name the following as:**
Certificate Holder:

1399 Park Avenue Condominium c/o
Douglas Elliman Property Management
909 Third Avenue 11th Floor
New York, NY 10022

Additional insured:

Douglas Elliman Property
Management
1399 Park Avenue Condominium
1399 Park Avenue, Unit __New York, NY 10029

ARTICLE 6

THE PARKING AREAS AND DRIVEWAYS

6.1 The Condominium does not own or operate the parking garage used by Residents of 1399 Park Avenue Condominium. The garage is managed by_1399 Garage Owner LLC.
6.2 The Condominium does not provide parking for Visitors or trades people.

ARTICLE 7

THE COMPACTOR ROOMS - GARBAGE DISPOSAL

7.1 Regular refuse is to be discarded down the compactor chute located in the trash room on each floor. Regular refuse should be placed in securely tied plastic garbage bags and not be placed in brown paper bags or discarded down the chute loosely.

Additionally, the following items **shall not be discarded down the chute** at any time and must be stored in separately marked containers and/or bags and placed on the floor of the trash room for removal by the porters.

- Aerosol cans
- Small appliances
- Hangers
- Books
- Clothing
- Combustibles
- Sharp articles
- Broken glass

7.2 Large boxes and objects should not be left in the trash rooms. Boxes should be folded, cut and/or flattened and taken to the main compactor room for disposal.

7.3 The following items will not be accepted by the City of New York during their regular refuse pick-up schedule. These items must be discarded by pre-arranging pick-up with the City. These arrangements can be made by contacting NYC Department of Sanitation or 311.

- Furniture
- Appliances
- Tires
- Tools
- Lumber

7.4 Construction debris and rubbish may not be placed in the compactor rooms or down the chute but must instead be disposed of off the building premises by the contractor.

7.5 Recyclables should be placed in the designated containers in the trash rooms on each floor. All recyclable containers should be emptied of food and/or other debris and rinsed clean. Please see the following for guidelines as to the items which will be accepted for recycling. This list may be updated from time to time. Check the New York City Sanitation website for the most current guidelines.

Materials Accepted

- Aluminum and iron food and beverage cans and containers
- Glass food and beverage containers
- Plastic containers, including detergent, shampoo bottles, etc. without caps
- Milk, juice and water bottles
- Plastic buckets, plastic laundry baskets, plastic lawn furniture, plastic totes, coolers, plastic flowerpots, plastic drinking cups/glasses, 5-gallon water bottles, etc.
- Cartons such as juice, broth, milk cartons, etc.
- Newsprint, magazines, catalogs, telephone books
- Corrugated cardboard
- Cereal boxes
- Printer and copier paper
- Mail and other paper without wax liners

Materials Not Accepted *(include but not limited to)*

- Plastic bags, including dry cleaner bags
- Microwave trays
- Mirrors, window or glass
- Light Bulbs
- Ceramics
- Porcelain
- Coat hangers (can be recycled at many dry cleaners)
- Glass cookware/bakeware
- Household items such as pots, toasters, etc.
- Paper including paper towels, tissues, etc. that has been in contact with food

****All glass containers must by empty and free of metal caps and rings.
All tin cans, bi-metal cans, and aluminum cans must be empty.
All plastic containers must be empty.

Plastic bags, including dry cleaner bags, are not recyclable. Plastic bags should be discarded with your regular trash in a securely tied plastic garbage bag.

ARTICLE 8

REPAIRS - ALTERATIONS - REDECORATION WITHIN APARTMENT UNITS

8.1 No Common Elements inside apartment units may be moved or altered, including sprinklers. Under special circumstances such alterations may be permitted with the authorization of the Board of Managers.

8.2 Any work beyond painting, wallpaper hanging, and replacement of carpet, window treatments, existing light fixtures or appliances, will require approval by the Board of Managers and Management, to assure that Common Elements and neighboring units will not be affected. Requests for modifications, improvements, or alterations can be applied for by submitting to the Management Office a written application describing the project, appropriate plans, contractors' certificates of insurance, and the necessary permits from the City of New York, if local ordinances require. A fee for processing such applications may be charged to the applicant. Costs for obtaining professional advice and or monitoring (e.g. architect, engineer) when necessary will also be charged to the applicant.

8.3 Floors and walls in the elevators, hallways and other Common Element areas must be protected. In addition, a $1000 security deposit is required for all contractors to work in the building. Unit Owners will be financially responsible for any damages incurred.

8.4 Contractors may work in apartment units Monday through Friday from 9:00 A.M. to 4:30 P.M. No work is permitted on Saturdays, Sundays, or Holidays. Unit Owners or Residents doing their own repairs must adhere to the same work hours. No heavy plumbing on Fridays.

8.5 Undertaking repairs, alterations, redecorations of an apartment unit in violation of these rules and the associated unit alterations package can result in serious fines by the Condominium, aside from any actions taken by the City of New York.

ARTICLE 9

FITNESS CENTER

9.1 The Fitness Center is for the use of Unit Owners and Residents only.

9.2 Visitors are not allowed to use the Fitness Center.

9.3 Proper attire, including athletic shoes must be worn when using the Fitness Center. No street shoes or clothing will be worn in exercise area. Dry sneakers, shirts, shorts, leotards, warm up suits, etc, must be worn while in the exercise area.

9.4 Users of the Fitness Center are expected to wipe down the exercise equipment after they have used it. All users of the Fitness Center are expected to maintain a reasonable standard of personal hygiene and the Condominium reserves the right to prohibit use by Residents who, in the sole opinion of the Condominium, habitually fail to conform to that standard.

9.4 Users of the Fitness Center shall not use loud, foul or slanderous language; nor shall they harass, badger, or solicit any other person.

9.5 No one under the influence of alcohol or drugs, will be permitted to use the facility. Residents shall conduct themselves in a quiet, well-mannered fashion, while using the Fitness Center.

9.6 Any activity creating excessive noise is prohibited.

9.7 Any person using the Fitness Center shall adhere to all posted safety regulations and equipment instructions.

9.8 There will be no smoking, carrying of lighted or electronic cigarettes, vapes, cigars or pipes or use of tobacco in the Fitness Center.

9.9 Food is not permitted in the Fitness Center. Water and other non-alcoholic beverages are permitted; however, it is the responsibility of users to discard all garbage (drink containers, etc.) brought into the Fitness Center.

9.10 No children under the age of 15 years old are permitted in the fitness center at any time.

a) Children ages 15-18 years old are permitted in the fitness center only when accompanied by an adult.

b) Strollers, carriages, car seats, and all other baby and child equipment are not permitted in the fitness center at any time or under any circumstance.

9.11 Instructors/trainers must first register with the Management Office and provide evidence of insurance naming the various entities associated with the Property as additional insured.

ARTICLE 10

PETS

10.1 Only common, domesticated household pets such as dogs, cats, fish and birds in cages, subject to the following, may be kept as household pets within any unit. Must provide copies of all up-to-date vaccinations, registration, and veterinary information.

10.2 No more than two pets, except for quantities of fish, may be kept per unit. (Renters must provide additional security deposit of 1 month and must adhere to a weight limit of no more than 60 lbs.)

10.3 Pitbull, Doberman pinscher dogs may not be harbored or brought onto or kept on the property at any time.

10.4 Any pet, which, in the Board's opinion, endangers health or security or creates a nuisance or unreasonable disturbance, must be removed from the property upon 30-day notice. Actions which will constitute a nuisance include but are not limited to unreasonable crying, barking, scratching, aggressiveness or transmission of odors of any kind

10.5 Pets must be leashed or carried **at all times** on the property outside of unit.

10.6 Pets are not allowed on the plantings on or around the building.

10.7 Pet droppings must be cleaned by the individual accompanying the pet.

10.8 **Pets are not allowed in the Fitness Center, Community Room, outdoor roof terrace or any place of gathering. No pet items (such as pet beds, pillows or clothing) may be washed or dried in the common washers and dryers.**

10.9 No pigeons or other birds or animals shall be fed from the windowsills, terraces, balconies, court spaces, other public portions of the building, or on the sidewalk or street adjacent to the building.

10.10 No animals shall be permitted to roam the hallways, lobbies or other common areas.

10.11 Unit Owners or Residents shall be liable for personal injuries, property damage and for the full cost of any work (including cleaning and lawn repair) made necessary by pets owned by them or their guests, in addition to possible penalties for violating the Rules and Regulations. This includes damage from the pet relieving itself in an improper area.

ARTICLE 11

TERRACES & BALCONIES

11.1 The use of terraces or balconies is restricted to a maximum number of people as approved by the fire department or other applicable codes in the City of New York.

11.2 Owners may not enclose terraces or balconies.

11.3 Terraces and balconies shall not be used as storage areas. The hanging of clothing and the storing of brooms, mops and other personal items are not permitted on the terraces and balconies. The storage of bicycles, toys, furniture (except for the terrace furniture) and other personal items is not permitted.

11.4 The walls, floors and railings of the terraces and balconies are not to be painted by the Resident or Unit Owner, nor are mirrors to be installed on the walls or railings.

11.5 Floor covering and carpeting of the floor is not allowed. These coverings tend to trap water and damage the deck.

11.6 Nothing may be installed on a balcony that will be higher than 42 inches from the floor. This includes plants, statues, etc. Nothing shall be placed upon the terrace or balcony ledge under any circumstances.

11.7 No plants, planters or other apparatus may be placed on the terrace or balcony railing or hung within 18 inches of the end of the terrace.

11.8 Nothing shall be hung to dry from any roof terrace or balcony doors or walls. No exterior clothesline shall be erected, maintained or hung on terraces, balconies or railings

11.9 Barbeque grills are limited to gas only. Charcoal burning and propane grills, propane heaters and propane, gas, or wood fire pits and heaters are prohibited.

11.10 Under no circumstances should any item, including but not limited to cigarettes or cigars, be tossed or thrown from any roof terrace or balcony. No one shall sweep or throw, or permit to be swept or thrown, any dirt,

debris or substance from the roof terrace or balcony. In view of the seriousness and dangerousness of any such activity, the Board may impose a fine upon the first infraction of this rule.

11.11 Bird feeders are not permitted on the terrace or balcony. No food items should be left out on the roof terrace or balcony for any animal.

11.12 Only patio furniture and associated patio items are permitted on the terraces and balconies. Unit Owners and Residents must ensure that furniture will not be blown away by the wind on their terraces and balconies. Patio umbrellas should be suitably rated for use in high-wind areas. Any umbrella deemed unsafe by Management will be removed. Umbrellas shall never be left in the open position when the terrace is unoccupied.

11.13 During severe weather conditions, it may be necessary to secure items on the roof terrace and balconies or bring them inside the unit. Items that either blow off or fall off the terraces and balconies are extremely dangerous. Unit Owners will be responsible for any damage or injury caused by furniture or other personal items which blow off the roof terrace and/or balconies.

11.14 The following items are prohibited: trellises, awnings, roof terrace/balcony covers or enclosures, air conditioning equipment and/or heaters, any fixture or structure, improvements to roof terrace railings and other exterior additions or alterations to any terrace fence, door or railing.

11.15 No sign, awning, canopy, enclosure or radio/television antenna shall be affixed to or placed upon the roof terrace, walls, doors or any part of the building.

11.16 No drilling of any type is permitted on the roof terrace floorboards or the walls of the terrace.

11.17 The association may rent out the common roof terrace for private functions upon request. All renters must abide by the guidelines issued for the use of the common terrace.

11.18 No nuisance will be permitted on the common terrace, private terraces or balconies. Nuisance is defined, but not limited to any disturbance that may stop the peaceful enjoyment of unit by Residents and owners. Examples of nuisance are excessive noise, drunkenness, illicit behavior etc. All nuisance cases will be determined by the Building Manager. Residents have the right to call the police if there is perceived to be nuisance that violates the township nuisance code.

ARTICLE 12

CARTS

12.1 Carts are provided in the lobby area to assist Residents in moving heavy or bulky items to their apartments. These carts are provided for the use of all Residents under the following conditions:

a) All usage is to be recorded by the Concierge.

b) Residents are required to promptly return all carts to the Concierge in the lobby within 30 minutes. Carts shall not be left in hallways or the elevators.

Leaving carts in the elevators or the hallways can result in corrective action. This may range from a fine to suspension or loss of privileges for their use.

ARTICLE 13

CHILDREN'S PLAYROOM

13.1 No food or drinks permitted in the playroom.

13.2 No strollers permitted to be stored in the children's playroom or hallway outside the room.

13.3 All children must be accompanied by a parent/nanny/guardian and not left unattended.

13.4 Socks must be worn.

13.5 Toys from home are not permitted in the Children's Playroom.

13.6. No pets are allowed in the Children's Playroom.

13.7. The Children's Playroom must be left in a neat and clean manner. All toys and books must be returned to their appropriate space before departing the room.

13.8. For the comfort and safety of your child and other children, sick children are not permitted into the Children's Playroom.

ARTICLE 14

Violations of the Rules & Regulations

14.1 Owners/Residents who violate the Rules & Regulations of the Condominium, the Board may, in its sole discretion, issue a written warning instead of a fine. Such a warning shall not be construed as a waiver of any right of the Board to impose fines as it sees fit. Each subsequent violation is subject to be fined in accordance with the governing documents of your Condominium and/or may be fined up to $500.00 per day as determined by the Board of Managers.

14.2 Repeated violations of these rules show disregard for other owners, cause the Condominium unnecessary expense, and impede management of the building by unnecessarily consuming Management's time and effort. Repeated violations will result in enforcement action, which may include termination of the applicable Master Deed.

Dear Ladies and Gentlemen:

It is my pleasure to inform you that Douglas Elliman Property Management has been engaged as the managing agent for 1399 Park Avenue Condominium, effective August 1, 2020. Jennifer Granda has been assigned as your Property Manager and is your primary contact. **Jennifer Granda** can be reached directly at **212-455-4731** or via e-mail at **Jennifer.Granda@ellimanpm.com**, **Glenny Jorge** is the Assistant Property Manager working directly under Jennifer. Glenny's direct line is **212-692-6129** and her email is **Glenny.Jorge@ellimanpm.com**

To ensure we serve you completely, we ask that you please take a few moments to review the following items:

Repair Requests, Problems and Inquiries - Please bring any problems you may encounter with regards to the operation of your building, or your apartment please make a request on Buildinglink.

Emergencies - We can be reached in case of emergency at any time (after hours or weekends), by calling our main office number at 212-350-2899 answering service will immediately convey your message to a member of our staff who will advise you of the steps being taken to handle the situation.

Payment of Common Charges– We have been authorized by your Board of Managers to collect your August common charges; an invoice is being mailed to you shortly under separate cover. The invoice will show the usual base amount of your monthly common charges but may not show any credits or arrears you may have. (As of this writing we have not yet received a final reconciliation from your former agent and therefore are unable to post existing balances. If received soon, the information will appear on your bill; if not, it will appear on a subsequent invoice. In the meantime, we thank you for your patience and cooperation.) As done previously, please make your check payable to 1399 Park Avenue Condominium. In general, your monthly invoice for common charges will be distributed from our office approximately five days prior to the first of each month.

Please Note: If you use an on-line banking service to send checks, please remember to change the mailing address of your payment to the address shown on your new statement. Similarly, if your common charge bills are paid by someone other than yourself (e.g. an accountant or assistant), please notify them of the new mailing address.

Name/Address Corrections – We will be using information provided by your former managing agent to enter unit owners' names and, in some cases, alternate addresses. Please advise us if your name has been misspelled or if you would like changes made to your mailing address.

Some Information About Douglas Elliman Property Management Company - As you may know, Douglas Elliman is one of the leading managers of high-end residential property in New York City. Our strength and spirit come from a combination of our service-oriented legacy, the exceptional quality of our personnel, and the deep resources of our parent company, Terra Holdings (one of the major real estate firms in Manhattan). Our goal is to realize the special qualities of your building and provide superior service to its residents - while enhancing the overall value of your apartment.

We look forward to providing the Owners at 1399 Park Avenue Condominium with all your property management needs.

Thank you for your attention.

Sincerely yours,
Jennifer Granda – Managing Director

BUILDING OPERATIONS AND INFORMATION

Amenities

1399 Park Avenue features a number of common amenities exclusively for residents:

Fitness Center	5th floor
Flex Space/Yoga Room	5th floor
Children's Playroom	5th floor
Community Lounge	5th floor
Billiards Room	5h floor
Library	5th floor
Outdoor Lounge	5th floor

Building Link Website

1399 Park Avenue Condominium Building Link website can be accessed at BuildingLink.com. A Building Link account will be created for you after the management office receives your completed resident information form. Login information will be e-mailed to the e-mail address you provide on the form.

Building Link is a community information management system that facilitates electronic communication between residents and the community management team and makes available on-line a library of useful information and community documents. Via Building Link, residents receive notice of packages/deliveries, receive important communications about their building, can authorize visitor access, can order Resident ID Cards, and more. When you first login to BuildingLink, make sure to go to the Edit Profile tab to enter important information and to select your Notifications preferences.

Cable TV and Internet Service

There are two options for internet and TV services, Verizon and Spectrum. Wi-Fi access is available in each of the amenity spaces, please contact the management office for connection instructions.

Contractors

Please see the Contractor Requirements in the Condominium Rules for additional important details. All contractors or tradespeople must be licensed and must provide the management office with a fully compliant certificate of insurance BEFORE any work takes place. All work must also be scheduled by the homeowner in advance via Building Link and email so it can be approved by the Property Manager. Contractors that have not been properly scheduled and approved on the Building Link/Building calendar will not be allowed onto the premises.

Cosmetic work such as paint, custom closets, backsplash, etc. does not typically require additional approval from the Condominium Board. However, other work including but not limited to sprinkler, plumbing, electric, layout/walls, windows, etc. will require a submission in writing to the management office and written approval by the manager and the Condominium Board. Such work may not be scheduled until you have received written approval.

Note that some plumbing and electrical work, such as changing a light fixture or plumbing fixture or replacing appliances, may not require permits or Board approval, however it will need management approval. But adding or relocating fixtures would require Board and Management approval and City permits. When planning any contractor work, it is best to coordinate your project with the management office to understand the condominium's requirements.

Deliveries/Packages

Once you have submitted your Parcel Receipt Authorization form to the management office, the front desk may accept packages addressed to you and hold them in the package room. You will be notified via Building Link if a package has been delivered to your attention. If you are expecting a large delivery of items such as furniture or groceries, you must schedule through Building Link and email to the Property Manager. Deliveries may only be made from 9 AM – 5 PM, Monday through Saturday. No deliveries are permitted on Sunday.

Front Desk

The front desk of the building is staffed 24 hours a day, seven days a week. Phone numbers for the front desk is 646-596-8886.

Janitorial & Maintenance Staff

The janitorial and maintenance staff are responsible for cleaning and maintaining all of the community common areas including, but not limited to, lobbies, common corridors, trash rooms, stairwells, common restrooms, common facilities, elevators and building entrances. The staff is specifically prohibited from performing services inside homes such as cleaning, maintenance, improvements or repairs. Please be considerate in not soliciting such services from the staff since they may be subject to termination for doing any such work.

Keys and Access Fobs

Upon the closing of your home you should receive two keys for the entry door to your new home and two keys for your mailbox. If at any time you change the lock to your entry door, you must provide the Management Office with a copy of the new key(s). The management office keeps this extra key in a secure lock box for use only in an emergency (e.g. fire, flood, medical, mechanical, police). The homeowner is responsible for the cost of any key replacements, lockouts, etc. Two key fobs are provided at closing for access to secured building areas and elevators. There is a fee for additional and replacement fobs. From 10pm to 6am the lobby doors are locked for security and an access fob is required to open the doors.

Mail & Newspapers

Mailboxes are located in the lobby of the building. Mail or parcels too large for your mailbox will be held in the package room if you have provided a parcel receipt authorization form to the management office. Please contact the U.S. Postal Service directly in order to have your mail forwarded or held during any extended absence. The building does not have access to your mailbox and is not able to hold mail. Please contact your newspaper delivery service to hold delivery of newspapers during extended absences. The front desk is not able to hold newspapers beyond the current day.

Management Office Hours

Your Management Company, **Douglas Elliman Property Management**, and your property manager Jennifer Granda, **Jennifer.Granda@ellimanpm.com** manage and direct all of the day-to-day activities that affect building operations and services. The management staff has been professionally trained to assist you and provide the most efficient service to residents. Please feel free to contact the management team at **212-455-4731** Management Office hours excluding holidays are:
Monday thru Friday 9am-5pm.

Payment of Association Fees

Monthly association fees are due by the 1st of each month. Payment of fees may be made via Check, or ClickPay. To enable direct deposit, the Direct Deposit Authorization Form must be completed and returned to the Management Office with a copy of a cancelled check.

Checks should be payable to:**1399 Park Avenue Condominium**. Please ensure that your account number and address are written on the check and mail along with your payment stub from your monthly statement to:

1399 Park Avenue Condominium
PO Box 22127
Tampa, FL 33622

Late payments will be assessed a late fee.

Rental of Home

If you plan on renting your home, the appropriate condominium form of lease along with a lease rider must be on file with the Management office prior to your tenant being allowed to enter the building and your home. Verbal authorization will not be accepted. In addition, you must update your unit profile with an alternate address for contact and correspondence. Please contact the Management Office for more information.

Trash Removal & Recycling

Trash/refuse rooms are located on every floor. Please follow the below guidelines in order to ensure your compactor functions properly and to avoid any problems with pests or vermin.

1. Trash must be securely wrapped or bagged, in a small package size, and placed down the compactor chute. Trash must be completely drip-free and in a drip-proof bag before it is removed from your home.
2. Recyclable items such as aluminum, glass, plastic, newspapers, cans, and aerosol containers shall not be discarded into the compactor chute but shall be placed in designated receptacles in the refuse room. All containers must be emptied, rinsed out and cleaned before they are placed in the bins. This is to ensure your building remains pest free.
3. Medical waste (syringes or other medical utensils, medical waste, etc**.) shall not be discarded on the premises.**
4. All pet litter shall be double bagged, marked Litter and left in the trash room.
5. **Cartons, boxes, crates, sticks of wood or other solid items shall be properly broken-down or tied and placed in a neat pile on the floor of the trash room**.
6. Vacuum cleaner bags must be emptied into a separate and secured bag prior to being placed down the compactor chute.
7. Under no circumstances should any of the following be thrown into the compactor chutes: **carpet sweepings, naphthalene, camphor balls or flakes, floor scrapings, plastic wrappings, oil-soaked rags, empty flammables, explosives, highly combustible substances, lighted cigarettes or cigar stubs.**
8. Bulk garbage, furniture, appliances, etc. require special pick-up to be arranged with the City's Environmental Services. These items cannot be placed in the Trash Room nor stored in common areas. Arrangements to dispose of these items must be made with the building Superintendent.

Utilities

Note that you must set up your own electric account with Con Edison prior to taking ownership of your new home. If electric may be on in your unit at move-in, it will be shut off by Con Edison without warning if you do not set up your individual account. Note that you do not need to set up an individual account for gas and water since these services are shared by the entire building.

Visitors and Guests

Visitors and guests will be greeted by the front desk at your building and the front desk will attempt to contact you. Your authorization will be required before allowing visitors and guests into the building. If you would like the front desk to allow access without contacting you, you may register the visitor(s) and guests in advance on Building Link in the Front Desk Instructions section.

1399 Park Avenue Condominium
REQUEST FOR ADDITIONAL ELECTRONIC KEYS

Additional electronic keys (i.e. fobs) are available to all 1399 Park Avenue Condominium residents for a fee of **$75** for each additional key fob. Please fill out the information below and submit this form along with a check (**Payable to 1399 Park Avenue Condominium)** for the appropriate amount to the concierge or management.

Unit #: _____ Total Number of Fobs Purchased:_____

_____ _____

Name **Signature**

_____

Date

Failure to pay for received additional fobs will result in amount of purchase assessed to Monthly Common Charges Account.

The above signatories agree to release, indemnify and hold harmless from liability the 1399 Park Ave Condominium and Douglas Elliman Property Management, their officers, directors, employees, lessors, managers and agents, as well as any successors and assign thereof from any personal injuries, including death, or damage or loss of property incurred while using the common rooms at 1399 Park Avenue Condominium.

1399 Park Avenue Condominium
Fitness Rooms User Agreement

By executing this document ("Agreement"), I ("I" or "my" refers to the person signing this document) acknowledge and agree as follows:

1. The Association maintains a fitness room with weight training and aerobic training equipment (collectively the "Fitness Room") that is available to the residents of 1399 Park Avenue Condominium (1399 Park Ave NY, NY 10029). The fitness rooms are not regularly monitored and are provided as an unsupervised amenity to adults who are capable of understanding the benefits and risks of using the Fitness Room. The Condominium is not aware of whether I am physically fit to use the equipment in the fitness room nor is it able to determine whether the equipment is in proper functioning order at all times. I acknowledge this and have signed this Agreement subject to this understanding.

2. I have consulted with my physician and have determined that I may safely utilize the Fitness Room, and the equipment located within them (or my physician has advised me which equipment I am physically fit to use, and I will limit my use to the equipment recommended by my physician).

3. I understand and agree that I am responsible for learning how to use the equipment properly and safely. I am responsible for establishing and maintaining my own exercise program. Should instruction be offered, I will be responsible for any injuries that may occur.

4. I understand that the Condominium reserves the right to change or cancel the continued availability of the Fitness Room without liability to me. No lease, license or bailment is created by my use of the Fitness Room. The Condominium is not liable for any loss or damage to my property.

5. I agree to refrain from using equipment that I determine to be defective or in need of maintenance or repair.

6. I understand that a risk of injury is present when engaging in or utilizing the Fitness Room and I assume all responsibilities and risk of participation in the use of the Fitness Room.

7. I understand and agree that the use of the Fitness Room is voluntary.

8. I have read and understand the Condominium's Rules related to the Fitness Room and I agree to comply with all Rules.

9. By signing this Agreement, I agree, on my behalf and on behalf of my heirs, successors and assigns that I waive and release the Condominium, it's officers, trustees,

agents and assigns from any claims, suits, damages, costs or expenses that I have, have had or may have for any personal injury, property damage or other claim resulting from my use of the Fitness Room or any part of the Fitness Room.

10. I have fully reviewed this Agreement and fully understand its terms and conditions. I have voluntarily signed this Agreement, and I acknowledge that the signing of this Agreement is not the result of coercion or duress.

PLEASE RETURN THIS FORM TO THE MANAGEMENT OFFICE PRIOR TO USING THE FITNESS ROOM.

Signature:_____Date: _____

Unit # _____

1399 Park Avenue Condominium

RESIDENTS' LOUNGE AT 1399 Park Avenue Condominium

RESIDENTS' LOUNGE RULES AND REGULATIONS

- The Residents' Lounges are located on the 5th floor of 1399 Park Avenue Condominium. The Residents' Lounge hours are as follows:
  - Sunday to Thursday: 7AM to 11PM
  - Friday and Saturday: 7AM to Midnight

- Residents may accompany up to five (5) outside guests' maximum at any one time per unit. Any cumulative groups of eight (8) or more, including Residents, or any activity that constitutes a party or private event (including, but not limited to, formalized invitations, organized music, catered food, etc.) for use of the room to the exclusion of other Residents will require a fully executed Resident's Lounge Rental Agreement (the "Rental Agreement"). Management may use their discretion as to what constitutes a party/event that requires the Rental Agreement. No paid admission events are allowed.

- The Residents' Lounge may be used for events or meetings of the Condominium organized by the Board of Managers or Committees of the Condominium without executing a Rental Agreement. At these times the Lounge will be closed to general use by the Residents.

- The Residents' Lounge and other common amenities serve the entire community. A Resident cannot be discouraged from using the facilities, except during the times when the lounge is properly reserved.

- Residents and guests are not permitted to loiter in the hallway outside of the Residents' Lounge. Please be mindful of the apartments in the vicinity of the Residents' Lounge and keep noise levels to a minimum while walking in the hallways on the way to/from the elevators.

- Please be respectful of others using the Residents' Lounge and the Residents living in the surrounding apartments when using the Residents' Lounge. The noise level (TV, music and conversations) must be kept to a level that cannot be heard in surrounding areas of the building. The doors must remain closed at all times.

- Bicycles, scooters, roller skates/blades, skateboards and other personal transportation devices are prohibited inside the Residents' Lounge.

- Smoking is not permitted.

- Pets are not permitted in any of the Common Elements including the Residents' Lounge.

- Residents are to clean up after themselves. Do not leave a mess for others. All trash and debris must be disposed of properly, furniture returned to its proper location and all personal property removed. If you spill something and are unable to clean it up properly, notify the Front Desk. To obtain the necessary cleaning equipment and/or request a member of the maintenance staff. Failure to leave the Residents' Lounge in a clean and orderly manner may result in monetary fines, assessments for damages and/or loss of privileges.

- None of the Condominium's property, including the remote controls, furniture and decorations, shall be removed from the Residents' Lounge without the permission of Management.

- The Residents' Lounge cannot be reserved on major public holidays, holiday weekends, sporting or special events, and days such as, but not limited to New Year's Eve, New Year's Day, Super Bowl Sunday, Presidents Day, St Patrick's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving and the day after Thanksgiving, Christmas Eve and Christmas. The Board and Management will use its discretion to ensure the Residents' Lounge is available for the use and enjoyment of all Residents.

- Residents are responsible for all actions of their guests. Guests are subject to the same recreational facility rules and regulations as Residents. All guests must be accompanied by an adult Resident (18 years of age and over). Guests are not permitted to use the Lounge without the Resident being present. The Resident agrees to take all precautions to prevent damage to the Condominium and to control disorderly or disruptive behavior of his guests or invitees during the Resident's use of the Residents' Lounge. The Resident (and Unit Owner if Resident is a tenant) shall be responsible for all damage to person and property caused in whole or in part by the Resident, his guests, invitees or staff.

- Nannies/babysitters are not permitted to host guests in the Resident's Lounge.

- Children aged 13 and under must be accompanied by an adult at all times. Teenagers between the ages of 14 and 17 may use the Residents' Lounge unaccompanied between 8:00 AM and 8:00 PM, and at all other open times if accompanied by an adult.

- If a child is playing/acting in a dangerous manner, in a way damaging to the Condominium's Property or disruptive to the Residents, the parent/guardian will be notified. It is the parent's/guardian's responsibility to promptly respond and compel the child to leave the area.

- No running, jumping, banging or other similar disruptive behavior is permitted in any indoor or outdoor common area. No walking, standing or jumping on any furniture. The Residents' Lounge is not intended to be a children's playroom and should not be utilized as such.

- Changing diapers on the counters, tables or furniture is not permitted.

- The kitchen area is to be used only as authorized and should be kept clean. Storage is not permitted in the cabinets or refrigerator. All persons using the kitchen are responsible for cleaning the kitchen and equipment used before leaving. Please ensure that you empty the refrigerator and remove any alcoholic beverages before leaving.

- Bands, DJ's or any other type of amplified music are prohibited in the Residents' Lounge.

- Candles and open flames are prohibited.

- No beer pong or other drinking games are permitted. Drunk or disorderly behavior is not permitted and may result in expulsion and fine.

RESIDENTS' LOUNGE RENTAL

- The Residents' Lounge can be rented by Residents in good standing for their personal use in accordance with the terms and conditions set by the Board of Managers as described in the Residents' Lounge Rental Use Agreement. This agreement may be altered by the Board of Managers from time to time.

- The Residents' Lounge can be rented a maximum of two (2) Fridays, two (2) Saturdays and two
  (2) Sundays per month. The Property Manager will use his discretion when approving rentals to ensure that the Residents' Lounge is available for the enjoyment and use of all Residents.

- Dates may not be reserved or held but can be requested through the Building Link Resource Reservation Calendar. The reservation should not be considered confirmed until the Building Link Calendar shows the event is Approved. A completed and signed Residents' Lounge Rental Use Agreement accompanied by the required payments and insurance certificate are required for the event to be approved. All events are approved through the management office.

- The application for rental may be rejected for the following reasons:
  - The unit owner is in default of any obligation to the Condominium.
  - The room is not available for that date.
  - The maximum rental days has already been reached for the month and/or other Common Elements are already rented for the same day.

- The occupancy of the room must not exceed **36** persons. The doors should remain closed at all times. Guests are not permitted to loiter in the lobby or other common areas of the building.

VIOLATION/FINES:

- A fine of $500 will be imposed on any Resident(s) who fails to comply with any of the rules listed above. The Board of Managers may also suspend the Resident's rights to use the Residents' Lounge in the future or to use other portions of the Common Elements.

UNAUTHORIZED EVENTS ARE SUBJECT TO THE FOLLOWING:

- Penalty of $1,000 for non-payment of security deposit and failure to execute a Rental Agreement
- Unauthorized Party – Additional $1,500 fine
- Suspension of the Resident's right to rent the Residents' Lounge in the future

LOUNGE RENTALUSE AGREEMENT

1. **DATE OF AGREEMENT:** This Agreement is made on this____day of_____.

2. PARTIES: The parties of this Agreement are as follows: 1399 Park Avenue Condominium and the unit owner:

If Resident is not the Unit Owner, the Unit Owner must also sign this Agreement and be bound to its terms.

Renter(s): _____ Name (Owner): _____

Address: _____ Address: _____

Mobile Tel #: _____ Mobile Tel #: _____

Bus/Home Tel #:_____ Bus/Home Tel #: _____

as Renter(s)

3. **AGREEMENT TO USE:** In accordance with the terms and conditions stated in this Agreement. The Renter(s) of the Residents' Lounge states that the facilities are to be used solely for the following purposes:

_____

_____

_____

4. TERMS OF USE:
This agreement authorizes the Renter in Section 2 (and his, her or their social invitees) to use the facilities on _____.

Event Time: From the hours of_____to_____.

NOTE: THE EVENT (INCL. CLEANUP) MUST END NO LATER THAN:

- **Sunday to Thursday: 10:00 PM**
- **Friday and Saturday: 11:00 PM**

5. RENTAL FEE AND SECURITY DEPOSIT (Make all checks payable to 1399 Park Avenue Condominium**)** The fees to be paid by the Renter for the use of the facilities are:

$500.00 per event – up to 3 hours
$100.00 per additional hour

OFFICE USE ONLY

Rental Fee Collected: $_____Check #_____
Security Deposit Check #:_____

Date: _____

Security Deposit: $1,000.00 (will be deposited prior to event and fully refunded if post-event inspection reveals no new damage, the room is cleaned after the event and there are no violations of the Rules & Regulations. Refer to Section 6 – Damages)

Rental Fee and Security Deposit must be paid by Resident no less than ten (10) days prior to event. Failure to pay in a timely manner may result in the cancellation of the event. The estimated head count must also be known ten (10) days prior to event.

6. **DAMAGES:** The Renter shall be responsible for damage to the facilities in accordance with the following:

   a. Inspections and Determination of Damage:

      1. Renter will inspect the facilities with Management or an authorized member of the building staff ("Building Personnel") prior to the start of the event to confirm the condition of the facilities (Residents' Lounge, 5th floor hallway leading from the elevator to the Lounge and elevators), component parts (i.e. furniture, carpet, lighting, fireplaces, televisions, etc.).
      2. Any existing damage observed prior to the event shall be noted in writing on the *Residents' Lounge Condition Form* and signed by both parties. The signature shall constitute that there are no other limiting conditions in the facilities or of its component parts. Failure of the Renter to participate in the pre-event inspection and/or sign the *Residents' Lounge Condition Form* will result in the Renter's agreement to the findings noted by Building Personnel.
      3. After conclusion of the event, a post-event walk through inspection will be conducted by Building Personnel and any new damage shall be noted on the *Residents' Lounge Condition Form*. It is the Renter's responsibility to seek a post-event inspection. If Renter fails to carry out a post-event inspection walkthrough with Building Personnel after the event has concluded and/or sign the Residents' Lounge Condition Form, then that shall constitute the Renter's agreement to any findings listed by Building Personnel. Refer to section: Notification of Damage. In addition to any damage caused during the event, any new damage between the event and the post-event inspection is the responsibility of the Renter.
      NOTIFICATION OF DAMAGE: At the time of the post-event inspection walk through, the Renter shall be notified of any damage to the facilities and component parts. The Condominium shall undertake to repair the damage, or to determine the cost of repair, or both, for the purpose of charging the Renter. The Renter shall be given ten (10) days from the date of such notice to tender payment in full.

   b. **Deficiency Lien on Unit:** In the event that the sum of (1) the cost to repair and restore the damage to the Condominium's property and (2) the amount of any fines and penalties assessed, exceeds the amount of security deposit paid in accordance with this Agreement, the Renter agrees to be responsible to pay any deficiency. If this sum is not paid in full within ten (10) days after receipt of the bill from the Condominium, then the Association shall have the right to impress a lien upon the Unit Owner's Unit in the same manner as any other Condominium charges for the amount due and owing.

7. **RESPONSIBLE PARTY:** For the purpose of this Agreement the Renter(s) named above are designated as the Responsible Party for the event. As such, the Renter(s) agrees as follows:

   a. **Presence at Event:** The Responsible Party (Resident) shall be present at all times during the event. The Responsible Party shall not leave the facilities at any time and shall supervise the activities of the guests, ensuring that they behave in a responsible and lawful manner and

observe the Condominium's Rules and Regulations.

b. **Indemnification and Hold Harmless:** The Renter agrees to hold the Condominium, its offices, directors, members, agents and employees, as well as 1399 Park Avenue Condominium and indemnify them against any and all claims, damages, losses and expenses, including legal costs and expenses on account of injury to any person or damage to property or facilities, arising out of or in any way relating to the Resident's use and rental of the Residents' Lounge, In addition, and not as a limitation, the Renter shall be solely responsible for any and all injury and harm arising out of the use of alcoholic beverages, as referred to below.

c. **Risk of Loss to Personal Property:** The Renter assumes all risks and responsibilities for any loss or damage to material, goods, equipment, personal property or furniture placed in the facility during the entire time said materials, goods, equipment, personal injury or furniture are in the Residents' Lounge.

d. The Renter assumes any and all liability under **"Social Host Liability"** in the event that alcoholic beverages are served at the facilities during the event. The Renter is directed to familiarize him or herself with all requirements of law with respect to serving alcoholic beverages. No beer pong or other drinking games are to be allowed on the property at any time.

e. **Loss of Deposit:** Violation of any of the Rules and Regulations both in this Agreement and the Resident Lounge Rules will result in automatic loss of deposit. This section is not intended to limit the Condominium's ability to impose additional monetary and non-monetary fines and penalties on the Resident and/or Unit Owner.

Initial Here

_____Renter hereby acknowledges a full and complete understanding of all admonitions and requirements relating to the service of alcoholic beverages.

8. **RULES AND REGULATIONS:** The Renter and all guests, servants, contractors and entertainers of the Renter shall abide by the Rules and Regulations of the Condominium with an emphasis on the Residents' Lounge Rules (attached), which may be amended from time to time.

Each failure to comply with this Agreement or the Rules and Regulation of the Condominium shall subject the Renter(s) to liability for any damage to the facilities, and the possible suspension of any future right to rent the facilities. Furthermore, failure to comply may result in other penalties or restrictions to the Renter including, but not limited to, the right to assess a fine or fines. Refer to Section 6.b. - *Deficiency Lien on Unit* regarding unpaid fines.

a. **LIMITATIONS ON NUMBER OF GUESTS:** The Renter agrees at no time to exceed the number of persons lawfully permitted in the Facilities, or portions of the Facilities, in accordance with all fire and safety codes. In no event will the number of guests, servants, contractors and entertainers exceed the number agreed. Please provide the management office, Concierge Desk and the uniformed security guard, if applicable, with a guest list prior to your event.

b. **CLEAN UP AFTER EVENT:** The Renter shall be responsible at the conclusion of the event to remove from the facilities all persons and guests, all personal property, any materials, decorations, equipment, and to otherwise leave the facilities in the same condition as prior to the event ("broom clean" condition). Renter is responsible to separate trash and recycling. Trash to be left in appropriate receptacles/bins provided by the association. Any items left in the room become the

property of the Condominium and may be discarded.

c. **CONVENANTS OF THE CONDOMINIUM:** The Renter is familiar with the Restrictive Covenants contained in the Master Deed and the By-Laws of the Condominium, establishing the Condominium, and agrees not to violate any of the provisions.

d. **ALCOHOLIC BEVERAGES:** the selling of alcoholic beverages in any manner, directly or indirectly, is strictly prohibited.

e. **DECORATIONS:** The facilities may be decorated for the event. Renters shall decorate in a fashion and manner which does not damage the finish to the walls, ceilings, floors or furniture of the facilities. Decorations should be free-standing. The Condominium will assess for any damage arising out of the installation of such decorations. Refer to Section 6 – Damages. No directional signs shall be posted in any common areas leading to or from the Lounge for any event.

f. **DELIVERIES/LOAD-IN AND SET UP:** All deliveries must be scheduled in writing in advance with the Management office.

g. **GUEST LISTS:** Guest lists must be provided to Management no less than 24 hours in advance (or by 12 noon Friday for all weekend events). Guests will be checked in by the Concierge staff.

h. **SMOKING:** Smoking is not permitted.

i. **MUSIC/AUDIO/VIDEO:** Renters are responsible for the entertainment set up and/or arrangements. The Condominium requires that the Renter be respectful to the Residents of the building by reasonably maintaining and controlling the volume of the music/video entertainment. DJ's are not permitted at any time.

9. **CANCELLATION OF THE EVENT:** To be discussed with Management.

a. **BY THE RENTER:** The renter may cancel this agreement at any time in writing (via letter or email) to the Management Office.

b. **BY THE Condominium:** The Condominium shall have the right to terminate this Agreement, or impose limitations on the nature and extent of the event, at any time, without liability to the Renter,

- In the event that the facilities are unusable for the contemplated event due to loss of heat, electricity, casualty or similar occurrence; or the Renter has breached, or is expected to breach, the terms of this Agreement
- The Renter failed to pay the required fees in a timely manner
- If a Renter is delinquent in the payment of any monthly maintenance charges late charges or fees, or any lawful impediment prevents the event from taking place, including by way of example and not limitation, the anticipated number of guests exceed fire code regulations.

10. **INSURANCE:** The Renter must provide evidence of insurance coverage. Acceptable evidence will be a homeowner's insurance certificate showing liability coverage equal to $1,000,000.00 liability coverage or a special events insurance policy. The Condominium must be named as additional insured on the certificate.

11. **NOTICES:** Any notice required by this Agreement shall be given to the other party by telephone, and

thereafter in writing, both reasonable calculated to accomplish the communication necessary to have the other party understand and acknowledge the reason for the notification. Both parties should exercise reasonable effort to ensure that any notice given will be in a timely manner to minimize the cost and inconvenience that may result from the substance of this notice.

12. Residents who are not Unit Owners must receive the written consent of their respective Unit Owner / Lessor before they can rent the facility. A Unit Owner / Lessor may not rent the facility if their unit is actively rented.
13. This agreement is limited to the Residents Lounge.
14. Renter shall not charge admission or cover charges for any event.
15. **GOVERNING LAW:** This Agreement shall be subject to and governed by the laws of the State and City of New York. The parties' consent to the jurisdiction of the Courts of the State and City of New York.

Accepted and Agreed to:

RENTER: _____
Print name

_____
Signature

Unit Owner must also sign and agree to the terms if the Resident is a tenant

_____
Print name

_____
Signature

Application Approved by:_____ Date: _____

1399 Park Avenue Condominium COMMON

GAS GRILL RESERVATION FORM

Resident's Name_____ Unit # _____

I hereby reserve the use of the common grill on the deck for the following date and time period. I have read the guidelines below and will be responsible for returning the key to the front desk immediately after use.

Reservation Date_____ Time Period _____

Contact Phone # _____ (Maximum use is one hour)

_____

Resident's Signature

_____

Date

GUIDELINES FOR THE USE OF THE COMMON GAS GRILL

1. The Grill must be requested by completing this form and returning it to the front desk/management. For final approval please have concierge confirm your requested time period is available.
2. A $50 (Fifty dollar) deposit check will be required for each reservation.
3. Reservation is based on a first come, first serve basis.
4. The maximum time for each use is one hour only.
5. The Grill cannot be reserved on major public holidays and holiday weekends such as but not limited to Independence Day, Memorial Day and Labor Day.
6. Any residents holding the key are responsible for any damages caused by or done to the grill regardless of who causes the damage.
7. Keep children and pets away from the grill.
8. After you finish cooking, brush the grill and grate with a stiff wire brush provided. The grill must be cleaned properly after use to avoid penalty fee.
9. Allow the grill to cool before placing the protective cover over it.
10. Wear clothing that does not have hanging shirt tails, frills or apron strings, and use flame retardant mitts when adjusting hot vents.
11. Use long-handled barbecue utensils to avoid burns and splatters.
12. In the event of a fire, please use the fire extinguisher and notify the front desk immediately.
13. Failure to return the key or clean the grill will result in a penalty subject to your $50 deposit check.

OFFICIAL USE

Deposit:
Date/Time Key checked out:
Date/Time Key Returned:
Authorized by:

Maintenance (Owner's Responsibility)

- **HVAC Unit Maintenance - April/October**
- **Refrigerator filter**
- **Cartridges - Brand Watermark**
- **Bosch Appliance - Dishwasher & Oven**
- **Cleaning your Gutters (if you have a terrace)**
- **Disconnect outside water supply - before the winter.**

Vendors & Contact Information (COI & Indemnification Required at all times)

- **Door Locks – Abbey Locksmith (212) 535-2289**
  service@abbeylock.com
- **Windows - Eutech Construction (929) 328-7269**
  info@eutechconstruction.com
- **HVAC Maintenance**
  Figlia & Sons Inc. – (212)686-0094

  (MERV8 Filter is the most well-tolerated with the HVAC units. Anything higher, the amount of air flow is reduced to the fan unit.)

  16x30x1 -> https://a.co/d/fqdER6z
  20x30x1 -> https://a.co/d/g6pfqw5

  ar@figliasons.com
- **NorWest AC & Heating Service Corp. (718)747-1009**
  www.norwestac.com
- **MMH Air & Services, Inc. (347) 901-8129**
  office@mmh-air.com
- **Bosh Appliance – Bosh – 1877-247-8789**
  Account #4996086

Please note these vendors are used by the building, we are not making recommendations.